The Question Method Tip Sheet

Quick Tips

Don't assume any facts are relevant. At the start of research, it's easy to note every fact that seems potentially relevant in the file. However, without the legal authority to confirm relevance, you are likely inefficiently using your time logging facts that may ultimately have no material impact on the analysis.

Make micro research questions as specific as possible. Ensure you are not asking more than one question and that the question is clear enough that you will know when you have answered it. Even exploratory questions are specific if you know enough once answered to move forward.

Focus on getting the answer to the research question you're asking. Sources will often answer more than one question, so log those questions in your map and synthesize the answer to the question that first brought you to the source you are reviewing. Do not address those questions until they become the next question in your research log.

Research all the way down a chain of logic before going sideways. Most cases will have multiple elements, and often multiple issues. To use your time efficiently and respect how brains process information, keep researching all sub-issues of an element before moving to the next element.

Be explicit until you build expertise. Expert researchers do not write every question and log every step, but they have internalized the process and are far less likely to miss key information or lose previous work. Until you are more experienced, reduce the likelihood of mistakes by practicing being explicit.

Research Questions

While it is not necessary to perfectly classify every research question, making a practice of identifying what type of question you are attempting to answer can help guide your research decisions, such as what source to use, and understand where you are in the research on a particular issue. If you've gotten the rule (R) and how it has been applied to facts (E) you are likely in a place to either move on to the next element/issue or take a break from research and flesh out some of your writing (C & A)

Type	*It asks...*	*Where to look*
Definitional	What does this word or phrase mean?	Statutes & regulation definitions sections or case law for mandatory definitions; legal dictionary for understanding or persuasive definitions
Exploratory	What is the legal landscape in this area of law?	**No-clue:** encyclopedia or general search. **Foundational:** treatise. **Survey:** ALR, Restatements, 50-state surveys.
Focusing	What is the specific rule, standard, or test?	The statute, regulation, or case that states the rule and sub-rules.
Application	How does the rule work on these facts?	**Fact-finding:** cases with facts like yours. **Constructive:** build the rule from several sources by analogy.

Research Checklist

Before you start

- ☐ **Clarify the assignment.** Scope, jurisdiction, deadline, resources, expected format and depth, and anything you were told to avoid.
- ☐ **Write the macro question.** Place it at the top of your Research Log.
- ☐ **Review the file.** Capture facts that help you now. When the file provides microquestions and leads for those questions, start your research map with them.
- ☐ **Reflect on what you know.** Consider what knowledge you have about the legal issue and what you would need to know to move forward with your research.
- ☐ **Identify your first question.** This might be on the map already from your file review (e.g., what does the statute say about FMLA certification statute say about what a sufficient certification contains?) or it might arise from your reflection (e.g., what is FMLA?). Write it down on your research map (if you have not already) and the start of your research log.

Researching Answers to Questions (Rinse & Repeat)

- ☐ **State your research question.** Write one specific micro question in your research log. Check that you are asking only one question, that you will know when you have answered it.
- ☐ **Identify the question type.** Definitional, exploratory, focusing, or application. Doing so can help you narrow down the sources most likely to answer the question.
- ☐ **Search for the answer.** If this is the very beginning of your research OR an exploratory question at any time, use a secondary source. Add the source you use to the research log
- ☐ **Synthesize & record your findings.** Ideally, this will be the answer to your question, but sometimes it's a dead end. Add it to the log regardless, and to the outline if you find an answer.
- ☐ **Map what else the source raised.** Add new questions and leads, such as cases cited in footnotes, to your research map. Do not research them until they become your next question.
- ☐ **Quick Check.** Are you in a headspace to keep researching? If the latter is no, then write out the next steps for future you and pivot to writing or another activity. If yes, continue on.
- ☐ **Choose your next question.** Do you have more questions in the map? Keep going down the chain of sub-issues for an element before moving sideways to the next element.

Checking out

- ☐ **Run a final sweep.** Search again using different terms as a quick check. Try intentionally to find adverse authority if you have not yet found any.
- ☐ **Update every authority.** Run KeyCite or Shepard's on every case you plan to cite and check for negative treatment in your jurisdiction. For statutes, check for pending amendments and recent session laws. For regulations, check the eCFR effective date and the LSA.
- ☐ **Confirm your propositions.** Ensure each authority supports the proposition you cite it for.
- ☐ **Review your research map.** Make sure no questions remain.
- ☐ **Look for outline gaps.** Double check that your outline and writing do not have any analytic gaps in your argument.
- ☐ **Name & document type of closure.** Analytical closure means more research would only change your wording. Practical closure means a deadline, budget, or instruction forced you to stop, so note what remains. If you cannot document why you stopped, you have not closed.